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RELEASE OUTCOMES FOR PRETRIAL INTERVIEWS CONDUCTED SINCE 1/1/2025 INCLUDING AT LEAST ONE JEFFERSON COUNTY CASE

June 23, 2026

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Statistics Request Overall Description

On April 1, 2026, Research and Statistics received a request for summary statistics related to individuals with two prior violent offense convictions who are currently facing a new violent offense in Jefferson County.

The Pretrial Services Information Management System (PRIM) was queried for information regarding pretrial interviews conducted since January 1, 2025. This query utilized data from the Pretrial Risk Assessment (PSA), a structured tool used to evaluate a defendant's likelihood of new criminal activity or failure to appear in court. To get information on defendants' violent charge history, the query specifically pulled from two key metrics within the PSA: Question 1, which asks if any current charges within the interview are violent, and Question 9, which asks for the number of prior cases associated with the defendant that contain a violent conviction.

PSA Violent Offense Definition:

An offense is categorized as violent for purposes of the PSA if a person causes or attempts to cause physical injury through use of force or violence against another person. A charge of attempt (such as attempted murder or attempted robbery), being an accessory before the fact, solicitation, or conspiracy to commit any of these offenses is considered a violent offense. When developing and validating the PSA, the researchers did not categorize the following as violent offenses:

- involuntary crimes of recklessness and negligence, unless they are charged at the level of manslaughter or homicide; or
- offenses involving threats, intimidation, harassment, and similar behavior—with the exception of stalking, which is categorized as violent.

Please note that the PSA criteria for a violent offense differs from the violent offense criteria found in KRS 439.3401¹. Some misdemeanors are classified as violent offenses under the PSA criteria, including but not limited to inchoate variants (attempt, solicitation, etc.) of violent Felony D base offenses.

Statistical Report

This report consists of a total of 3 tables: with the first being a general overview and the other two being divided by Court Jurisdiction (Circuit Court and District Court). Each table's data contains counts

¹ [KRS 439.3401 - Violent offenders](#)

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of interviews created from 1/1/2025 to the present including at least one Jefferson County case. Note that for the purpose of the PSA, "prior violent convictions" is intended to mean prior cases with a violent conviction associated with the defendant to whom the interview pertains.

The report is broken down as follows:

Table 1: Overview Statistics

Displays the count of interviews with at least one Jefferson County case, categorized by the defendant's number of prior cases with a violent conviction as answered on question 9 of the PSA. Prior convictions are grouped as 0, 1, 2, and 3 or more; and whether or not the current charge is violent.

<u>Overview Statistics</u>			
Prior Felony Convictions	Current Violent Charge - Yes	Current Violent Charge - No	Total Interviews
0	4,520	11,666	16,186
1	1,490	4,027	5,517
2	892	1,889	2,781
3 or More	1,207	2,375	3,582
Totals	8,109	19,957	28,066

Table 2 & 3: Release Decision/Outcome Statistics

These tables detail release decision and outcome statistics exclusively for interviews containing a current violent charge with a defendant that had exactly two prior cases with a felony conviction. The data reflects the total count of interviews, broken down by Release Decision and Release Outcome. For organizational clarity, this information is separated by jurisdiction:

- **Table 2:** Displays the data for Circuit Court cases.

<u>Release/Decision Outcome Counts (Circuit)</u>		
Release Decision	Release Outcome	Circuit Interview Count
Financial	Detained Until Disposition	45
Financial	Escape/Error	1
Financial	Financial Release	20
Financial	In Custody	77
Financial	Indictment	1
Financial	Indictment Summons	18
Financial	Transfer	5
No Judicial Presentation	In Custody	2
Non-Financial	Detained Until Disposition	4
Non-Financial	Financial Release	1
Non-Financial	In Custody	4
Non-Financial	Indictment Summons	18

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Non-Financial	Non-Financial Release	28
TOTAL		224

- **Table 3:** Structured the same as Table 2 but with data for District Court interviews instead of Circuit Court interviews.

Statistical Analysis Considerations (District)

Release Decision	Release Outcome	District Interview Count
Administrative Release	Administrative Release	2
Financial	Detained Until Disposition	214
Financial	Escape/Error	2
Financial	Financial Release	104
Financial	In Custody	69
Financial	Indictment	97
Financial	Non-Financial Release	3
Financial	Transfer	2
No Judicial Presentation	In Custody	3
Non-Financial	Detained Until Disposition	18
Non-Financial	Financial Release	4
Non-Financial	In Custody	7
Non-Financial	Indictment	3
Non-Financial	Non-Financial Release	136
Non-Financial	Transfer	2
Release Not Offered	Detained Until Disposition	1
Release Not Offered	In Custody	1
TOTAL		668

Statistical Analysis Considerations:

- The statistics presented in the attached tables are a snapshot in time as of the date the data was queried: 6/23/2026.
- Violent conviction history measures all PSA violent charges that are in a defendant's history, not just felonies.
- An individual defendant may be involved in multiple interviews during the time frame.
- Each interview may involve multiple cases, including cases from differing counties. While this report is limited to interviews with at least one Jefferson County case and at least one violent charge, it is not a guarantee that the Jefferson County case(s) contained within an interview have the interview's violent charge(s).
- Multiple bonds may be issued for a single case, and only the most recent bond for each case is reported.
- Release outcomes are reported at the case level. Since a defendant is not released from pretrial custody until pretrial release is granted for all cases pertaining to the same pretrial interview, not all defendants with cases indicating pretrial release in this report may have truly been given pretrial release.

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Administrative Release / Pre-Arrestment Release Protocol

Defendants assessed as low or moderate risk; not charged with offenses identified as public safety concerns, contempt, probation violation, bail jumping, the violation of a protection order, and who have not previously violated a condition of pretrial release or failed to appear in court may be released on their own recognizance without a bond hearing.

On 1/01/2024, the name of the program was changed from *Administrative Release* to *Pre-Arrestment Release Protocol* (PARP). The order also rescinded eligibility for charges of a first offense of Driving Under the Influence of alcohol/substance (DUI) with a passenger under 12 years of age or involving an accident resulting in death or serious physical injury. (Since these elements are not indicated by Uniform Offense Reporting (UOR) codes on citations, Pretrial Officers identify these factors by reading citation narratives and identifying situations such as someone other than defendant being transported by an ambulance). This order also made ineligible charges of specific offenses occurring during a natural/man-made disaster or period of civil unrest; and defendants who are on active, supervised probation for a felony offense.²

On 01/01/2025, a new order rescinded eligibility for any defendant charged with a Class D felony offense who has been assessed as a moderate risk for both FTA and NCA.³

Data Variables Requested

Database	Data Variable	Description
PRIM	Release Decision	Using the most recent bond related to this Interview in this Jurisdiction, similar bond types are grouped for reporting. If the bond type of the most recent bond is 60-Day Rule and the Jurisdiction is District Court, the bond type of the bond entered prior to this 60-Day Rule bond is used instead if such entry exists. Administrative Release: The Defendant was given Administrative Release prior to any judicial hearing (see Administrative Release section above). Such

² SCR 2023-40 AMENDED ORDER IN RE: Authorization for the Non-Financial Uniform Schedule of Bail Pre-Arrestment Release Protocol (2023).

<https://www.kycourts.gov/Courts/Supreme-Court/Supreme%20Court%20Orders/202340.pdf>

³ SCR 2024-42 AMENDED ORDER IN RE: Authorization for the Non-Financial Uniform Schedule of Bail Pre-Arrestment Release Protocol.

<https://www.kycourts.gov/Courts/Supreme-Court/Supreme%20Court%20Orders/202442.pdf>

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Data Variables Requested		
		bonds are identified when the bond is flagged as Administrative Release and/or the judge code 000001 is used. Non-Financial Bond: Types of release in which no money or property must be posted prior to release. • Release on Recognizance • Surety • Unsecured • No Probable Cause • 60-Day Rule Financial Bond: Types of release in which money or property must be posted prior to release. • 10% • Cash • Guaranteed Arrest Bond Certificate • Property • Partially Secured or Percent Bond • Stock and Bonds No Judicial Presentation: No bond hearing occurred for this Interview in this Jurisdiction. (There was no matched bond entry). This typically happens in District Court cases disposed very quickly, or Circuit Court cases for which a previous bond already exists for one or more related District Court cases and is retained without modification and the defendant brought to court again by summons rather than arrest. Release Not Offered: Indicates that the defendant had a bond hearing and was not offered any pretrial release. (A bond type of “No Bond,” was entered).
	Release Outcome	The way pretrial custody ended for this Interview in this Jurisdiction. Aggregated as a combination of bond release and alternative release. For each case entry, the Release Outcome is the earlier of either the Alternative Release or the Bond Type of the most recent related bond if this bond has a release date. The Release Outcome for this Interview in this Jurisdiction is the Release Outcome of the related PRIM Case Entry with the most recent Custody End Date. The outcomes are as follows: • Bond Releases

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Data Variables Requested		
		○ Administrative Release: Released via Administrative Release as described above. ○ Non-Financial Release: Released via Non-Financial Bond as described above. ○ 60-Day Rule: Released after 60 days of pretrial custody on a District Court case. This is considered non-financial release, but the bond holding the defendant in custody for 60 days may have been financial. ○ Financial Release: Released via Financial Bond as described above. ○ Indictment Summons: Indicates that a defendant already released on a District Felony case was not brought back into custody following an indictment, but that the same release conditions were maintained by the Circuit Court and the defendant was issued a summons. This is indicated by the entry of a bond with the same conditions as specified in the related District Court release with a release date 1-5 minutes later than the PRIM Case Entry's booking date. Prior to 3/22/2018, Circuit Criminal cases may not have been entered in PRIM if there was not a new arrest. Starting on this date, Circuit Criminal cases began being entered in this manner in order for Circuit Court pretrial compliance rate reports to more accurately reflect the entire population of defendants on pretrial release. ● Alternative Releases: ○ Indictment ○ Credit in Lieu of Fine: This code was made obsolete on 7/1/2013. ○ Detained Until Disposition: The description "Detained Until Disposition," is used for clarity in

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Data Variables Requested		
		reporting. The selection used in PRIM is “Disposed Prior to Release”. ○ Transfer: Transferred to Another Secure Facility or In Patient Facility. ○ Escape/Error: Escaped or Released in Error.
	Defendant’s Prior Cases with a Violent Conviction	The number of prior cases containing a violent conviction that are associated with an interview’s defendant, based on the answer to question 9 of the Pretrial Risk Assessment. Tables 2 and 3 in this report are limited to interviews with defendants having exactly 2 prior convictions.
	Charge County	The county in which a given case was filed. This report is limited to interviews containing at least one case filed in Jefferson county.
	Jurisdiction	Aggregations are calculated separately for the Circuit Court and District Court cases within each interview. CI = Circuit Court, DI = District Court. Cases of Case Number type “CR” (Circuit Criminal) are counted as Circuit Court, while all other cases are counted as District Court, including those with missing case number entry for which the true jurisdiction has not been identified.
	Date Created	The date the interview was created (first data entry) in PRIM by Pretrial staff. Typically the date of the pretrial interview. For this report, the data is limited to interviews created after January 1 st , 2025
	Question Number	Integer associated with each of the questions in the Pretrial Risk Assessment report. Data is filtered down to evaluate only specific questions—namely Question 9 (<i>Number of prior violent offense convictions</i>) and Question 1 (<i>Is the Current Charge Violent?</i>). Tables 2 and 3 in this report are limited to interviews where the answer to Question 1 was Yes and the answer to Question 9 was 2.
	Interview Counts	The number of interviews that fit the criteria specified in each of the tables. Circuit/District specifiers determine whether the interviews were counted on the Circuit or District level.

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The data from this report is provided from the Pretrial Services program. Information received from the Pretrial Services program's electronic case management system (PRIM) is subject to change(s), reprogramming, modification(s) of format and availability at the direction of the Administrative Office of the Courts (AOC), and may not at any particular moment reflect the true status of court cases due to ordinary limitation(s), delay(s) or error(s) in the system's operation.